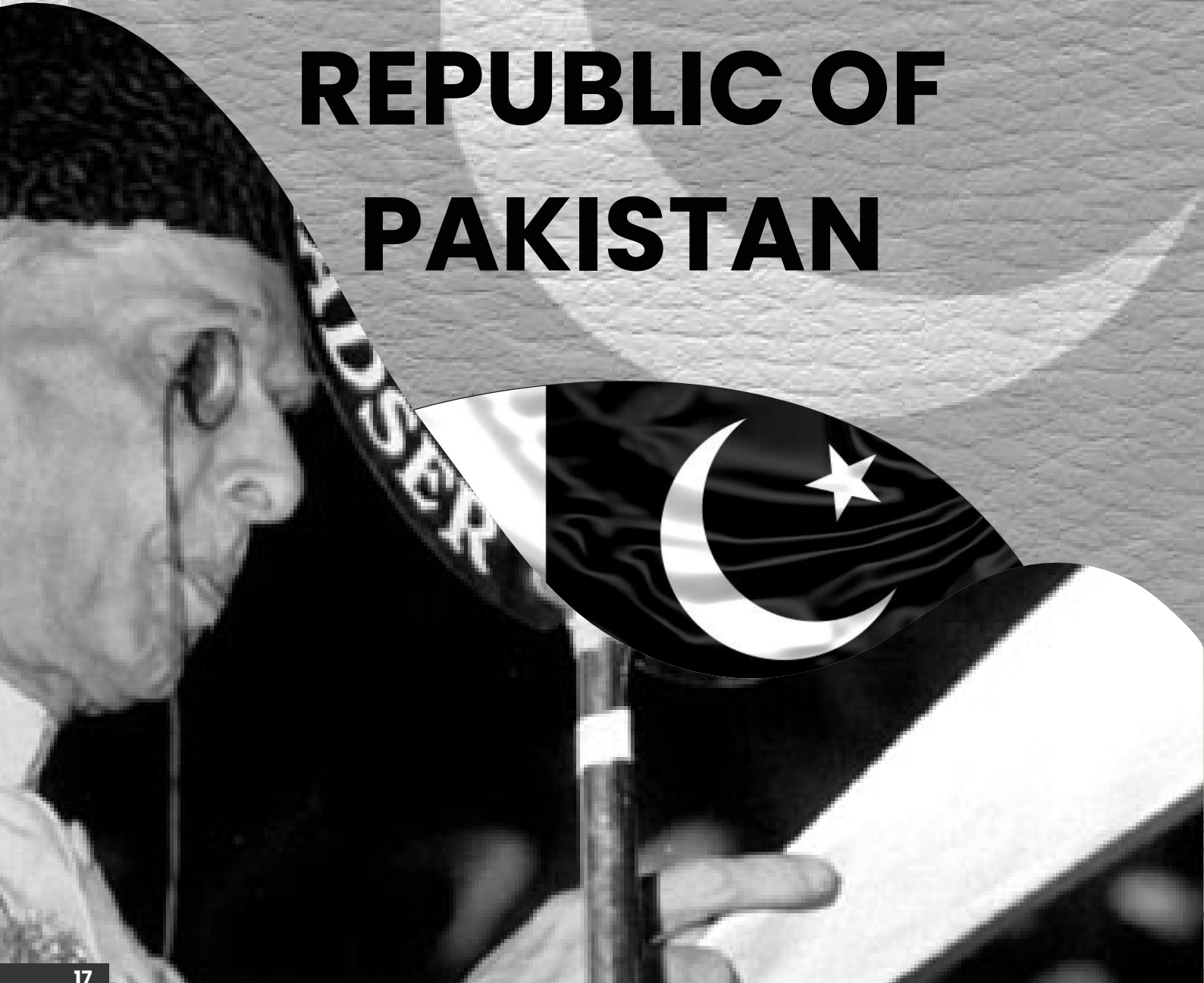


CHAPTER 03

CONSTITUTIONAL DEVELOPMENT IN ISLAMIC REPUBLIC OF PAKISTAN



THE NEED FOR CONSTITUTION

The need for a constitution is paramount in shaping the foundations of a well-ordered society. Serving as the supreme law of the land, a constitution establishes the legal framework for governance, delineates the powers and responsibilities of different branches of government, and safeguards the fundamental rights and liberties of citizens. It plays a crucial role in fostering government accountability, maintaining political stability, and promoting social cohesion by defining the relationships between diverse groups within society. A constitution contributes to economic development by providing the necessary legal structures for economic activities and investments. Beyond its domestic significance, a constitution enhances a nation's international standing, reflecting its commitment to democratic principles and the rule of law. Empowering citizens with a sense of identity and participation, a constitution becomes a dynamic instrument adaptable to evolving societal needs, ensuring that the principles of justice, equality, and individual freedoms remain at the forefront of governance.

THE OBJECTIVE RESOLUTION 1949**INTRODUCTION**

The Objective Resolution of 1949 stands as a pivotal document in the constitutional history of Pakistan, laying the groundwork for the guiding principles of the country. Introduced by Prime Minister Liaquat Ali Khan, it aimed to define the objectives and principles that would shape the constitution and governance of Pakistan.

SALIENT FEATURES OF OBJECTIVE RESOLUTION

- Affirmed the ultimate sovereignty of Allah over the entire universe.
- Emphasized the establishment of an order aligned with the teachings and principles of Islam.
- Aimed to eliminate economic disparity and ensure the equitable distribution of resources.
- Affirmed the equality of all citizens, irrespective of caste, creed, or gender.
- Committed to safeguarding the rights and religious freedoms of non-Muslim communities.
- Recognized the importance of an independent judiciary based on Islamic principles.
- Emphasized democratic governance, respecting the will of the people.
- Stressed the preservation of Pakistan's cultural and economic identity.
- Committed to promoting international peace and cooperation.
- Laid the foundation for future constitutional developments, influencing subsequent provisions

CONSTITUTION OF 1956**INTRODUCTION**

The Constitution of 1956 marked a significant milestone in the constitutional evolution of Pakistan, as the country transitioned from a dominion to the Islamic Republic of Pakistan. This constitution, though short-lived, played a crucial role in shaping the legal and political landscape of the nation..

SALIENT FEATURES OF THE CONSTITUTION OF 1956:**ISLAMIC REPUBLIC**

Declared Pakistan as an Islamic Republic, reflecting the nation's commitment to the principles of Islam.

PARLIAMENTARY SYSTEM

Established a parliamentary form of government with a President as the head of state and a Prime Minister as the head of government.

ISLAMIC ADVISORY COUNCIL

Formed an Islamic Advisory Council to ensure legislation aligns with Islamic principles.

FUNDAMENTAL RIGHTS

Enshrined fundamental rights, including the right to equality, freedom of speech, and protection against discrimination.

ISLAMIC PROVISIONS

Included provisions emphasizing the Islamic way of life, encouraging adherence to Islamic values.

PROTECTION OF MINORITIES

Ensured the protection of the rights of minorities, promoting a pluralistic and inclusive society.

JUDICIAL INDEPENDENCE

Upheld the independence of the judiciary, emphasizing the rule of law.

DIRECTIVE PRINCIPLES OF STATE POLICY

Outlined directive principles to guide state policy in areas such as social justice, economic welfare, and cultural development. Page 18 of 59

PROVINCIAL AUTONOMY

Provided for a federal structure with provinces enjoying a degree of autonomy.

ABOLITION OF SEPARATE ELECTORATES

Abolished separate electorates, emphasizing a move towards a more inclusive political system.

NATIONAL LANGUAGE

Designated Urdu as the national language, recognizing its significance in fostering national unity.

PRESIDENTIAL POWERS

Outlined the powers and functions of the President, who was elected by the members of the Electoral College. The Constitution of 1956, despite its brief existence, laid the foundation for subsequent constitutional developments in Pakistan. It reflected the aspirations of the nation for a democratic and Islamic republic, shaping the legal and political framework for years to come.

CONSTITUTION OF 1962**INTRODUCTION**

The Constitution of 1962 represented a departure from parliamentary democracy to a presidential system in Pakistan. Introduced during President Ayub Khan's regime, it aimed to provide stability and governance efficiency.

SALENT FEATURES OF THE CONSTITUTION OF 1962**PRESIDENTIAL SYSTEM**

Established a presidential form of government, concentrating executive authority in the President.

BASIC DEMOCRACIES

Introduced a system of Basic Democracies, creating local bodies for decentralized governance.

INDIRECT ELECTIONS

Implemented an electoral system with indirect elections for the President and Basic Democracies.

PRESIDENTIAL POWERS

Granted extensive powers to the President, including the ability to dissolve the National Assembly.

RESTRICTIONS ON POLITICAL ACTIVITIES

Imposed restrictions on political activities and the formation of political parties.

TECHNOCRATS IN GOVERNMENT

Encouraged the inclusion of technocrats in the government to enhance administrative efficiency.

ISLAMIC PROVISIONS

Retained certain Islamic provisions but with a more pragmatic approach to governance.

ABOLITION OF PROVINCIAL BOUNDARIES

Abolished the existing provincial boundaries and replaced them with administrative units.

SINGLE-POINT ADVICE

Introduced the concept of "single-point advice," limiting the President's need to consult multiple sources.

CONSTITUTIONAL AMENDMENTS

Facilitated easier amendments to the constitution through the President's decree.

The Constitution of 1962, though providing a stable governance structure, faced criticism for its concentration of power in the hands of the President. Its short-lived existence paved the way for subsequent constitutional reforms in Pakistan.

CONSTITUTION OF 1973**INTRODUCTION**

The Constitution of 1973 is a pivotal document in the constitutional history of Pakistan, representing a consensus among various political forces. Enacted during the government of Prime Minister Zulfikar Ali Bhutto, it provided a framework for democratic governance, protection of fundamental rights, and a federal structure.

SALIENT FEATURES OF THE CONSTITUTION OF 1973**ISLAMIC REPUBLIC**

Declared Pakistan as an Islamic Republic, affirming the principles of democracy, rule of law, and social justice in accordance with the teachings of Islam.

FEDERAL STRUCTURE

Established a federal structure with four provinces, recognizing provincial autonomy.

PARLIAMENTARY SYSTEM

Reintroduced a parliamentary form of government with a Prime Minister as the head of government and a President as the ceremonial head of state.

FUNDAMENTAL RIGHTS

Enshrined fundamental rights, including the right to equality, freedom of speech, and protection against discrimination.

ISLAMIC PROVISIONS

Incorporated Islamic principles in the legal system while recognizing the diversity of the population.

INDEPENDENCE OF JUDICIARY

Ensured the independence of the judiciary, establishing the Supreme Court as the highest court of appeal.

PROTECTION OF MINORITIES

Safeguarded the rights of minorities, promoting a pluralistic and inclusive society.

PROVINCIAL AUTONOMY

Provided for provincial autonomy and established mechanisms for resource-sharing between the federal and provincial governments.

NATIONAL LANGUAGE

Designated Urdu as the national language, while recognizing regional languages for official use.

ISLAMIC ADVISORY COUNCIL

Formed an Islamic Advisory Council to guide legislation in accordance with Islamic principles.

BICAMERAL LEGISLATURE

Established a bicameral legislature with the National Assembly and the Senate to represent the people and provinces, respectively.

OBJECTIVE RESOLUTION

Incorporated the principles of the Objective Resolution of 1949, emphasizing the ideals of justice, equality, and fraternity.

LOCAL GOVERNMENT

Recognized the importance of local government and provided for its establishment.

CONSTITUTIONAL AMENDMENTS

Outlined a procedure for constitutional amendments, ensuring a balance between flexibility and stability.

The Constitution of 1973 has endured as the longest-serving constitution in Pakistan's history, with various amendments reflecting the changing needs and dynamics of the nation. It remains a foundational document that defines the democratic and Islamic character of the country.

THE FALL OF EAST PAKISTAN**CAUSES OF FALL OF EAST PAKISTAN:****i. Geographical location of East and West Pakistan**

The physical separation of East and West Pakistan by a considerable distance hindered effective communication and contributed to a sense of detachment between the two regions.

ii. Difference in the social structure

East and West Pakistan had distinct social structures with cultural, linguistic, and economic differences, leading to a sense of alienation and unequal representation.

iii. Martial Laws

Frequent imposition of martial law in the country disrupted democratic processes, leading to political instability and unrest, particularly in East Pakistan.

iv. Language Issue

The imposition of Urdu as the sole official language led to discontent in East Pakistan, where Bengali was widely spoken. This language disparity fueled resentment and a desire for linguistic equality.

v. Provincial Autonomy

The demand for greater provincial autonomy in East Pakistan was not adequately addressed. The centralization of power in West Pakistan contributed to feelings of marginalization in the East.

vi. Economic Deprivation and Propaganda

Allegations of economic disparity and discriminatory practices in resource allocation fueled discontent. Propaganda against the people of East Pakistan further aggravated tensions.

vii. Role of Hindu Teachers

The influence of Hindu teachers and intellectuals in East Pakistan was viewed with suspicion, contributing to a perception of collusion with external forces.

viii. International Conspiracies

Allegations of international conspiracies, involving external powers working against the unity of Pakistan, fueled suspicions, and eroded trust between East and West Pakistan.

ix. Sheikh Mujib's Majority in the Elections of 1970

The sweeping electoral victory of Sheikh Mujibur Rahman's Awami League in the 1970 elections, securing a majority in the National Assembly, intensified demands for autonomy in East Pakistan.

x. Military Action in East Pakistan

The military crackdown in East Pakistan in 1971, aimed at suppressing demands for autonomy, escalated tensions and led to widespread atrocities and loss of lives.

xi. India's Attack

India's intervention in support of East Pakistan's struggle for independence played a decisive role in the events leading to the creation of Bangladesh.

The fall of East Pakistan in 1971 marked a tragic chapter in the history of the region, characterized by political, cultural, and military complexities. The combination of longstanding grievances, political miscalculations, and external factors contributed to the dissolution of the unity of Pakistan.

RECOGNITION OF BANGLADESH

The recognition of Bangladesh as an independent sovereign state unfolded against the backdrop of the Bangladesh Liberation War in 1971. Fueled by the declaration of independence by Sheikh Mujibur Rahman and subsequent military intervention by India, the conflict brought to light severe humanitarian crises and widespread atrocities. India's diplomatic acknowledgment of Bangladesh's sovereignty on December 6, 1971, set the stage for a domino effect, with other nations and international organizations progressively recognizing the newly emerged nation. Bangladesh officially joined the United Nations on March 4, 1972, and diplomatic relations were established with various countries, culminating in Pakistan's formal recognition on February 22, 1974. The recognition of Bangladesh not only affirmed the right to self determination but also marked a pivotal moment in the region's history, signifying the birth of a new nation and its integration into the global community.

OUR ROLE FOR THE PROGRESS AND PROSPERITY OF PAKISTAN

In recognizing the gift of our homeland, Pakistan, we should express gratitude for the sacrifices made by our forebearers and the opportunities bestowed upon us. Acknowledging our responsibility towards the progress and prosperity of our nation, we can contribute by:

- Embracing Active Civic Participation:** Engage in civic duties, vote responsibly, and actively participate in community initiatives.
- Advocating for Education:** Support and promote educational initiatives to enhance literacy rates and provide better opportunities for all.
- Championing Environmental Responsibility:** Adopt sustainable practices, participate in conservation efforts, and contribute to a cleaner, healthier environment.
- Supporting Economic Development:** Contribute to the nation's economic growth by participating in the workforce, supporting local businesses, and fostering entrepreneurial endeavors.
- Upholding Social Justice:** Advocate for equal rights, raise awareness about social inequalities, and actively engage in initiatives promoting fairness and inclusivity.
- Practicing Responsible Citizenship:** Abide by laws, promote ethical behavior, and actively participate in projects that benefit the community.
- Preserving Cultural Heritage:** Contribute to the preservation of cultural richness by supporting and participating in cultural events and promoting traditional arts.